

		Plaintiff shall serve further responses within 30 days compliant with Code of Civil Procedure section 2033.210 and 2033.220. Motion No. 7: Defendant's Motion to Compel Plaintiff's Further Responses to Form Interrogatories, Set Two (FROGs), filed under ROA 305, is GRANTED. This dispute concerns FROG 17.1, which seeks information regarding each of Plaintiff's responses to RFAs which are not an unqualified admission. In light of the order compelling further responses to RFAs, Plaintiff must also serve responses to FROG 17.1 to the extent any of her responses are not unqualified admissions. The request for sanctions is denied for the reasons set out above. Plaintiff shall serve further responses within 30 days. Motion No. 8: Defendant's Motion to Compel Plaintiff's Further Responses to Special Interrogatories, Set Two (SPROGs), filed under ROA 297, is GRANTED. Defendant seeks further responses to SPROGs 34-63, which relate to the subject fire. Plaintiff again asserts the requests are overbroad and redundant of prior requests. Plaintiff has not shown the SPROGs are redundant and Defendant has shown they are reasonably calculated to lead to discovery of admissible information regarding the subject fire. (Code Civ. Proc. § 2017.010.) The request for sanctions is denied for the reasons set out above. Plaintiff shall serve further responses within 30 days.
9	Azami vs. LAD Mission Viejo-JLR, Inc. 2024-01374785 Motion for Summary Judgment and/or Adjudication	Defendant LAD Mission Viejo-JLR, Inc.'s Motion for Summary Judgment or in the Alternative Summary Adjudication is GRANTED in part as to the 4th and 5th causes of action and DENIED as to summary judgment and the 1st-3rd causes of action. The Court exercises its discretion to consider Plaintiff's improperly formatted objections. (See <i>Herrera v. Deutsche Bank National Trust Co.</i> (2011) 196 Cal.App.4th 1366, 1378.)

		Plaintiff's first objection is overruled. The statement relates to Defendant's state of mind in believing US Bank had the correct value rather than asserting US Bank in fact did have the correct value. Plaintiff's second and third objections are sustained. "At the trial or any other hearing in the action, so far as admissible under the rules of evidence, the propounding party or any party other than the responding party may use any answer or part of an answer to an interrogatory only against the responding party." (Code Civ. Proc., § 2030.410.) Plaintiff's fourth objection is sustained. Defendant failed to include the deposition pages at issue in its exhibits. The Court exercises its discretion to consider summary adjudication even though Defendant failed to strictly comply with the procedural requirement of California Rules of Court rule 3.1350(b). "Moreover, even if some additional headings had been required, the court's power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory. " (<i>Truong v. Glasser</i> (2009) 181 Cal.App.4th 102, 118.) <u>Merits</u> 1st Cause of Action – Violation of the Rosenthal Act "Any action under this section may be brought in any appropriate court of competent jurisdiction in an individual capacity only, within one year from the date of the occurrence of the violation." (Civ. Code, § 1788.30(f).) Defendant claims the cause of action is barred by the statute of limitations because it claims the only information Plaintiff identified that was reported to the credit reporting agencies was the check for the credit report. (UMF 5.) Thus, Defendant claims the date to be used is the purchase date of June 16, 2022. However, Defendant's cited evidence does not support its initial claim that Plaintiff is only claiming the credit check harmed her credit. Plaintiff also claims her credit was affected by her loan being sent to the collections department. (Azami Depo., 36:1-20.) Defendant offers no evidence to disprove or provide a defense to this part of the claim Thus, Defendant has failed to meet its initial
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	burden. Therefore, summary adjudication is denied as to the 1st cause of action. 2nd and 3rd Cause of Action – Violation of the Fair Credit Reporting Act and the Consumer Credit Reporting Agencies Act "With respect to furnishers of information to consumer credit reporting agencies, like UDR and First Advantage Corporation, section 623 of the FCRA imposes two general requirements: the duty to provide accurate information and the duty to investigate the accuracy of reported information upon receiving notice of a dispute." (<i>Sanai v. Saltz</i> (2009) 170 Cal.App.4th 746, 763-764.) "A person shall not furnish information on a specific transaction or experience to any consumer credit reporting agency if the person knows or should know the information is incomplete or inaccurate." (Civ. Code, § 1785.25.) Defendant's argument against the 2nd cause of action fails for the same reason. Defendant claims it had no duty to investigate and provided accurate information. Defendant claims it only checked Plaintiff's credit. However, Defendant again fails to address the claim Plaintiff's credit was affected by Defendant transferring the loan to collections. Additionally, the argument against the 3rd cause of action fails for failing to address the same claim. Thus, Defendant has failed to meet its initial burden. Therefore, summary adjudication is denied as to the 2nd and 3rd causes of action. 5th Cause of Action (incorrectly labeled Count VI) – Violation of the Consumer Legal Remedies Act "The unfair methods of competition and unfair or deceptive acts or practices listed in this subdivision undertaken by any person in a transaction intended to result or that results in the sale or lease of goods or services to any consumer are unlawful" (Civ. Code, § 1770(a).) " 'Consumer' means an individual who seeks or acquires, by purchase or lease, any goods or services for personal, family, or household purposes. (Civ. Code, § 1761(d).) Defendant has sufficiently met its burden of showing Plaintiff cannot show she is a consumer within the meaning of the CLRA. In response to special interrogatory
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	no. 21, Plaintiff admits she “had already leased a new car from Santa Monica and [bought] the Mission Viejo vehicle to sell.” In response to no. 31, Plaintiff stated she “planned to sell the Range Rover.” Finally, in Plaintiff’s deposition, Plaintiff admits she had no recollection of driving the vehicle after purchasing it in 2022. (Azami Depo. 31:15-32:6.) Thus, the burden shifts to Plaintiff to demonstrate there is an issue of material fact as to whether she constituted a consumer within the meaning of the CLRA. Plaintiff has failed to satisfy her burden of showing there is an issue of material fact. Plaintiff points to the lease which stated the vehicle was primarily being used as a personal vehicle. The lease was a separate transaction from the purchase. Additionally, the characterization of the vehicle in any contract does not change how Plaintiff intended to use the vehicle, which she stated numerous times was to sell rather than use herself. Further, Defendant’s knowledge of Plaintiff’s intentions are immaterial to whether Plaintiff is a consumer under the CLRA. Thus, summary adjudication is granted as to the 5th cause of action (labeled count VI). 4th Cause of Action (incorrectly labeled Count V) - Fraud “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638.) Defendant has met its initial burden of showing it did not have the requisite knowledge of falsity to constitute fraud. Plaintiff alleges Defendant intentionally misrepresented the residual value of the vehicle at time of purchase by asking the lender, US Bank, for the fair market value of the vehicle rather than the loyalty payoff. Rudkin, Defendant’s general manager at the time of purchase stated in his declaration Defendant did not have a copy of the lease at the time of purchase. (Rudkin Decl., ¶ 4.) Thus, Defendant contacted US Bank to request the correct residual value because they were the holders of the lease contract. (Rudkin Decl., ¶¶ 6-7.) Defendant relied upon the number provided by US Bank and Rudkin claims
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		Defendant had no reason to believe the number was incorrect. (Rudkin Decl., ¶ 8.) Thus, the burden shifts to Plaintiff to demonstrate there is an issue of material fact as to whether Defendant knew the residual value provided was false at the time of purchase. Plaintiff fails to meet her burden. Plaintiff concedes she “does not dispute Defendant was not aware of the correct residual value at the time of the transaction” This alone is sufficient to grant summary adjudication. Further, Plaintiff only disputes Defendant was the responsible party for requesting the fair market value rather the loyalty payoff from US Bank to use as the residual value. However, Defendant requesting due to a mistake is different than intentionally requesting the incorrect figure. Plaintiff presents no evidence Defendant knew it should have requested the loyalty payoff rather than the fair market value. Thus, summary adjudication is granted as to the 4th cause of action (labeled count V).
10	Tsirtsis vs. Pacific Hospital Long Beach 2021-01234325 Motion for Sanctions Motion for Summary Judgment/Adjudication	Defendant Dr. Ian Armstrong’s Motion for Summary Judgment/Adjudication is GRANTED. Defendant moves for summary judgment or adjudication as to Plaintiff’s First Amended Complaint (FAC). The FAC alleges claims for (1) recovery of stolen property, (2) medical battery, and (3) unfair competition, arising from an alleged bribe and kickback scheme between his doctors and a spine surgical center, resulting in alleged medically unnecessary procedures. The FAC does not identify specific procedures which were allegedly unnecessary. Defendant asserts summary judgment is required based on the Court’s 12/29/25 order deeming admitted Defendant’s requests for admissions to Plaintiff regarding essential elements of Plaintiff’s claims. Plaintiff filed a motion to withdraw the admissions on 6/4/26, nearly five months after Defendant’s MSJ was filed. On 7/6/26, this Department continued the hearing on the summary judgment motion to provide for the discovery judge, Judge De La Cruz, to rule on Plaintiff’s Motion to Withdraw Deemed Admissions, which was set for hearing on 7/22/26. However, on 7/20/26, Judge De La Cruz continued the hearing on that motion to 8/26/26 because the parties’ Joint Letter Brief filed on 7/13/26 exceeded the page limit. Therefore, this Department continued the hearing to the present date.